

DEPARTMENT OF VETERANS AFFAIRS

**Justification for Single Source Awards IAW [FAR 13.106-1](#)
For
Over Micro-Purchase Threshold but Not Exceeding the SAT (\$250K)**

Acquisition Plan Action ID: [REDACTED]

1. **Contracting Activity:** Department of Veterans Affairs, Network Contracting Office 16 (NCO 16), 5075 Westheimer Road, Suite 750, Houston, TX 77056.

Requisition Number: [REDACTED]

2. **Brief Description of Supplies/ Services required and the intended use/Estimated Amount:**

The Department of Veterans Affairs is seeking a contractor to provide qualified Intraoperative Neurophysiologic Monitoring Services and instrumentation at the Michael E. DeBakey VA Medical Center (MEDVAMC) in Houston, 2002 Holcombe Blvd, Houston, Texas 77030.

Neurophysiologic monitoring is the use of electrophysiological methods such as electroencephalography (EEG), electromyography (EMG), and evoked potentials to monitor the functional integrity of certain neural structures (e.g., nerves, spinal cord and parts of the brain) during surgery. The purpose of Intraoperative Nerve Monitoring (IONM) is to reduce the risk to the patient of iatrogenic damage to the nervous system, and/or to provide functional guidance to the surgeon and anesthesiologist.

The contractor shall provide complete neurological monitoring services to include operating and maintaining equipment (including monitoring devices), supplies, and labor of on-site qualified technician to perform IONM services.

In accordance with (IAW) FAR 13.5 Simplified Procedures for Certain Commercial Items and specifically FAR 13.501 Special Documentation Requirements, where acquisitions conducted under Simplified Acquisition Procedures are exempt from the requirements of FAR Part 6, but still require a justification using the format of FAR 6.303-2. The MEDVAMC request urgent services for IONM Service. This unusual and compelling requirement will be awarded as a fixed price with [REDACTED] with a period of performance beginning 04-01-2025 through 06-30-2025.

3. **Unique characteristics that limit availability to only one source, with the reason no other supplies or services can be used:**

The need still exist for contractor to provide IONM. The current contract 36C25619D0056 end on 03-31-2025. MEDVAMC request a new contract in place no later than 04-01-2025. This contract will offer a three months emergency contract, until long term contract is completed. This emergency contract will avoid disruption in IONM services coupled with a delay in the award of a contract to continue services, would result in medical complications for our Veterans. Due to these facts, if this requirement is not sole sourced under Unusual and Compelling Urgency, given the immediate need

to continue IONM services to ensure the stability of care to Veterans would affect patient safety. New company will need to be able to have employees privilege, background check and surveillance procedures in place to start contract performance. The time and administrative process of credentialing a new firm that is not currently credentialed with MEDVAMC, compounds the delay in IONM services for our Veteran patients.

4. Description of market research conducted and results or statement why it was not conducted:

IAW FAR 10.001(a)(2) market research was conducted appropriate to the circumstances. A Request for Information (RFI) sources sought notice number 36C25624Q0626 to identify potential vendors that are able to fulfill IONM requirements. The following vendors responded to the sources sought notice and will be used for market search for the long-term follow-on contract.

Company Name	Socioeconomic Status
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[Redacted]	
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Time constraints and barriers as noted above and do not allow for removing or overcoming any barriers to competition. A competitive procurement package is in the works for a long term need.

Buy American Act and Trade Agreements (BAA/TA): IONM services does not provide a manufactured end product; it is a medical service. The medical services sought and accepted will be medical services offered from a U.S. based firm. Therefore, the BAA/TA is not applicable to this requirement.

Nonmanufacture Rule (NMR): IONM services applicable NAICS code is 621999, All Other Miscellaneous Ambulatory Health Care Services. Additionally, IONM services does not provide a manufactured end product; it is a medical service. The NMR is applicable to requirements with manufacturing NAICS codes prefixes of 31XXX, 32XXX, and 33XXX. Based on the NAICS code of 621999, this requirement is not subject to the NMR.

5. Contracting Officer's Certification: *Purchase is approved in accordance with FAR13.106-1(b). I certify that the foregoing justification is accurate and complete to the best of my knowledge and belief.*

[Redacted]
